



WHEN RECORDED RETURN TO:

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Document Title: Declaration of Covenants, Conditions, Reservations and Restrictions of the South Douglas Long Plat, Div. 4
Grantor/Declarant: Kramer Construction, Inc., a Washington Corporation
Legal Description: South Douglas Div 3, Tract A1
Assessor's Tax Parcel ID#: 390230 020468 0000 / PID: 179182
Related Document #: 2090102034

Grantee: Public

**DECLARATION OF COVENANTS, CONDITIONS, RESERVATIONS AND
RESTRICTIONS OF THE SOUTH DOUGLAS LONG PLAT, DIV. 4**

A. RECITALS

1. The undersigned Declarant is the Owner in fee simple of the following described real property located in the County of Whatcom, State of Washington:

Tract 1A, as delineated on South Douglas Long Plat, Division 3, according to the plat thereof, recorded February 12, 2015, under Auditor's File No. 2150201460, records of Whatcom County, Washington.

Situate in Whatcom County, Washington.

(hereinafter referred to as "Division 4").

2. The real property identified above is referred to as "Subsequent Phases", as defined at paragraph 1.14 of the Declaration of Covenants, Conditions, Reservations and Restrictions of the South Douglas Long Plat, Div. 1 recorded at Whatcom County Auditor's file number 2090102034. Consistent with Paragraph 1.14 of that document, Declarant intends to reaffirm that Division 4 is subject to the terms of the Declaration of Covenants, Conditions, Reservations and Restrictions of the South Douglas Long Plat,

Div. 1 and further reaffirm the inclusion of Owners of Lots within Division 4 into the Douglas Plats Community Association.

B. DECLARATION

The Declarant hereby certifies and declares that the Declaration of Covenants, Conditions, Reservations and Restrictions of the South Douglas Long Plat, Div. 1, dated January 8, 2009 and recorded at Whatcom County Auditor's file number 2090102034 (the "Division 1 CCRs"), shall inure and be binding upon the respective Owners of each Lot or Tract within Division 4, and the Declarant further declares that all of the property within Division 4 described herein is held and shall be held, conveyed, encumbered, leased, rented, used, occupied and improved subject to those covenants, conditions, reservations and restrictions for the purpose of enhancing and protecting the value, desirability and attractiveness of Division 4 and every part thereof. All of those covenants, conditions, reservations and restrictions shall run with the land and shall be binding upon all parties having or acquiring any right, title or interest in Division 4 or any part thereof.

1. INCORPORATION OF TERMS

Declarant, by this reference, hereby incorporates and adopts all terms contained within the Division 1 CCRs as though set out here in full and as hereafter may be amended. All such rights, restrictions, obligations, liens and so forth shall apply in full force to any Lot or Tract within Division 4.

2. COMMUNITY ASSOCIATION

Declarant further hereby affirms that the Owners of each Lot within Division 4 shall be included within the membership of the Douglas Plats Community Association and subject to the rights and obligations attendant thereto.

3. SOUTH CHURCH ROAD LOTS AND 24' ACCESS & UTILITY EASEMENT

The South Douglas Long Plat, Div. 1 and the Division 1 CCRs established the 24' Access & Utility Easement for use by Lots within (1) the South Douglas Long Plat, Div. 1 and (2) Subsequent Phases. Division 4 widens the 24' Access & Utility Easement to thirty feet (30'). Despite this change in width, the Access & Utility Easement within this Division 4 shall be governed by the terms and conditions for the 24' Access & Utility Easement set forth in the South Douglas Long Plat, Div. 1 and the Division 1 CCRs.

Declarant hereby affirms that Lots 1, 2, 3, and 4 within this Division 4 are South Church Road Lots, as defined at paragraph 3.15 of the Division 1 CCRs. As such, pursuant to paragraphs 6.5.1 and 6.12 of the Division 1 CCRs, the Lots contained within this Division 4 shall be responsible, along with other South Church Road Lots (from other

phases of the South Church Long Plat), for maintenance and operation of the 24' Access & Utility Easement (as defined at paragraph 1.16 of the Division 1 CCRs).

Additionally, Declarant hereby affirms that Lot 5 within this Division 4 is a modified South Church Lot. In that, it fronts Church Road, but it does not abut the 24' Access & Utility Easement. As such, Lot 5 shall not be bound by, obligated to, or responsible for the portions of the Division 1 CCRs specifically related to the 24' Access & Utility Easement. For example, paragraph 6.5.1 relates solely to the 24' Access & Utility Easement, and Lot 5 is not bound by, obligated to, or responsible for this paragraph, at all. On the other hand, both paragraphs 3.15 and 6.12 contain provisions related to the 24' Access & Utility Easement, but these paragraphs also contain unrelated provisions, too. Lot 5 is not bound by, obligated to, or responsible for the portions of these paragraphs related to 24' Access & Utility Easement, but Lot 5 is bound by, obligated to, and responsible for the remaining portions of these paragraphs.

4. RESERVATION OF EASEMENTS

In addition to the reservation of easements contained in paragraph 2.1 of the Division 1 CCRs, the Declarant hereby reserves those certain easements over, under, upon, in, and through the affected portions of this Division 4, which are set forth on the face of or contained in any note on the final plat of the South Douglas Long Plat Division 4. The South Douglas Long Plat Division 4 is incorporated herein by this reference and is recorded at Whatcom County Auditor's File No. 2018-0800276.

5. MAINTENANCE AGREEMENT

Pursuant to the Division 1 CCRs, all costs to maintain, repair, or improve any Common Properties, which may include, but are not limited to, stormwater facilities, designated wetlands, open space tracts or other common facilities or open space elements located outside public right-of-way shall be borne by the Association.

6. PARAGRAPH HEADINGS

The paragraph headings in this Declaration are for convenience only and shall not be considered in construing this Declaration.

7. SEVERABILITY

In the event that any provision hereof is deemed by proper judicial decree to be invalid, then the remaining portion of this Declaration shall in no way be affected.

DATED this 30 day of JULY 2018.

KRAMER CONSTRUCTION, INC.

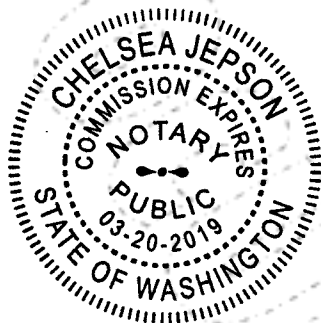
By: William Kramer
WILLIAM KRAMER, President

STATE OF WASHINGTON)
)ss.
COUNTY OF WHATCOM)

On this _____ day of JULY 2018, before me personally appeared WILLIAM KRAMER, to me known to be the President of the corporation that executed the within and foregoing instrument to be the free and voluntary act and deed of said limited liability corporation for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and official seal the day and year first above written.

Chelsea Jepson
Printed Name: CHELSEA JEPSON
Notary Public in and for the State of Washington,
residing at BELLINGHAM, WA
My Commission Expires: 3/20/19



DECLARATION OF COVENANTS, CONDITIONS, RESERVATIONS AND
RESTRICTIONS OF THE SOUTH DOUGLAS LONG PLAT, DIV. 4 - 4